THE DADRA AND NAGAR HAVELI ACT, 1961

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THE DADRA AND NAGAR HAVELI ACT, 1961

ACT NO. 35 OF 1961

[2*nd September*, 1961.]

An Act to make provision for the representation of the Union territory of Dadra and Nagar Haveli in Parliament and for the administration of that Union territory and for matters connected therewith.

BE it enacted by Parliament in the Twelfth Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the Dadra and Nagar Haveli Act, 1961.

(*2*) It extends to the whole of the Union territory of Dadra and Nagar Haveli.

(*3*) It shall be deemed to have come into force on the 11th day of August, 1961.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "Administrator" means the Administrator of the Union territory of Dadra and Nagar Haveli appointed by the President under article 239 of the Constitution;

(*b*) "appointed day" means the eleventh day of August, 1961;

(*c*) "Dadra and Nagar Haveli" means the Union territory of Dadra and Nagar Haveli;

(*d*) "Varishta Panchayat" means the Varishta Panchayat as in existence immediately before the appointed day.

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3. Representation in the House of the People.—(*1*) There shall be allotted one seat to the Union territory of Dadra and Nagar Haveli in the House of the People.

(*2*) In the Representation of the People Act, 1950 (43 of 1950),—

(*a*) in section 4, in sub-section (*1*), after the words "to the Laccadive, Minicoy and Amindivi Islands". the words ", to Dadra and Nagar Haveli" shall be inserted:

(*b*) in the First Schedule,—

(*i*) after entry 21, the following entry shall be inserted, namely:—

"22. Dadra and Nagar Haveli.....1";

(*ii*) entries 22 and 23 shall be re-numbered as entries 23 and 24 respectively.

(*3*) In the Representation of the People Act, 1951 (43 of 1951), in section 4, after the words "to the Laccadive, Minicoy and Amindivi Islands", the words ", to Dadra and Nagar Haveli" shall be inserted.

4. Varishta Panchayat.—(*1*) Until other provision is made by law, as from the commencement of this Act the Varishta Panchayat shall have the right to discuss and make recommendations to the Administrator on,—

(*a*) matters of administration involving general policy and schemes of development;

(*b*) any other matter referred to it by the Administrator.

(*2*) The functions of the Varishta Panchayat referred to in this section will be advisory only but due regard shall be given to such advice by the Administrator in reaching decisions on the matter in relation to which the advice is given.

(*3*) No act or proceeding of the Varishta Panchayat shall be invalid by reason only of the existence of any vacancy amongst its members or any defect in the constitution thereof.

(*4*) Every member of the Varishta Panchayat shall before entering upon his duties under this Act make and subscribe before the Administrator an oath or affirmation in the following form, namely:—

"I, A.B., a member of the Varishta Panchayat of the Union territory of Dadra and Nagar Haveli, do swear in the name of God that I will bear true faith and allegiance to the Constitution of India solemly affirm

as by law established and that I will faithfully discharge the duty upon which I am about to enter.".

5. Other functionaries.—Without prejudice to the powers of the Central Government to appoint from time to time such officers and authorities as may be necessary for the administration of Dadra and Nagar Haveli, all judges, magistrates and other officers and authorities who immediately before the appointed day were exercising lawful functions in Free Dadra and Nagar Haveli or any part thereof shall, until other provision is made by law, continue to exercise in connection with the administration of Dadra and Nagar Haveli their respective functions in the same manner and to the same extent as before the appointed day.

6. Property and assets.—It is hereby declared that all property and assets which immediately before the appointed day vested in the Varishta Panchayat or the Administrator of Free Dadra and Nagar Haveli shall, as from that day, vest in the Union.

7. Rights and obligations.—All rights, liabilities and obligations of the Varishta Panchayat or the Administrator of Free Dadra and Nagar Haveli in relation to Free Dadra and Nagar Haveli shall, as from the appointed day, be the rights, liabilities and obligations of the Central Government.

8. Continuance of existing laws.—Save as otherwise provided in this Act all laws in force in Free Dadra and Nagar Haveli immediately before the appointed day shall continue to be in force until repealed or amended by Parliament or other competent authority.

9. Continuance of existing taxes.—All taxes, duties, cesses or fees which, immediately before the appointed day, were being lawfully levied in Free Dadra and Nagar Haveli or any part thereof shall continue to be levied and to be applied to the same purposes, until other provisions is made by Parliament or other competent authority.

10. Power to extend enactments to Dadra and Nagar Haveli.—The Central Government may, by notification in the Official Gazette, extend with such restrictions or modifications as it thinks fit, to Dadra and Nagar Haveli any enactment which is in force in a State at the date of the notification.

11. Extension of the jurisdiction of Bombay High Court to Dadra and Nagar Haveli.—As from such date as the Central Government may, by notification in the Official Gazette, specify the jurisdiction of the High Court at Bombay shall extend to Dadra and Nagar Haveli.

12. Powers of courts and other authorities for purposes of facilitating the application of laws.—For the purpose of facilitating the application of any law in Dadra and Nagar Haveli, any court or other authority may construe any such law with such alterations not affecting the substance, as may be necessary or proper to adapt it to the matter before the court or other authority.

13. Power to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of this Act or in connection with the administration of Dadra and Nagar Haveli, the Central Government may, by order, make such further provision as appears to it to be necessary or expedient for removing the difficulty.

(*2*) Any order under sub-section (*1*) may be made so as to be retrospective to any date not earlier than the appointed day.

14. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(*2*) In particular, and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:—

(*a*) the manner in which casual vacancies in the Varishta Panchayat may be filled;

(*b*) the meetings of the Varishta Panchayat, the conduct of business and the procedure to be followed at such meetings;

(*c*) any other matter which has to be, or may be, prescribed.

(*3*) Every rule made under this Act shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or [1][in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid] both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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1. Subs. by Act 4 of 1986, s. 2 and the First Schedule, for centain words (w.e.f. 15-5-1986).